

11.	<i>Legacy Medical Consultants, LP vs. Jim Seraj</i> 2025-01530373	Before the court is the continued hearing on the motion of defendant and judgment debtor Jim Seraj dba Illuminary Medical Group (Defendant) to vacate judgment entered on sister state judgment, or in the alternative, stay enforcement pending proceedings to set aside sister state judgment. The court originally heard the motion on May 7, 2026. Prior to that hearing, the court posted a tentative ruling to grant the motion as to the request for a stay of enforcement of the judgment pending resolution of a challenge to the underlying judgment in Texas. At the hearing, the parties reported they have reached a settlement of this matter and submitted a stipulation to continue the hearing on the motion to today's date. The court accepted that stipulation and continued the hearing to today. The parties have not filed any further documents since the last hearing. Accordingly, the parties are ordered to appear and update the court regarding the status of the settlement and this motion.
12.	<i>Trosper vs. Enloe</i> 2019-01086297	Before the court is the motion of defendants Breton Dirk Enloe, Laurel Enloe, Brady Enloe, Sesma Cleaners, Inc., and Rocio Roman (collectively, Defendants) to set aside the judgment entered on November 4, 2025 (ROA 170) following an unopposed trial in this matter. As more fully set forth below, the motion is GRANTED. Code of Civil Procedure section 473(b) states, "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." As a general rule, an attorney's inexcusable neglect is chargeable to the client. (<i>Carroll v. Abbott Laboratories, Inc.</i> (1982) 32 Cal.3d 892, 895.) There, however, is an exception to this rule: "[E]xcepted from the rule are those instances where the attorney's neglect is of that extreme degree amounting to positive misconduct, and the person seeking relief is relatively free from negligence. [Citations omitted.] The exception is premised upon the concept the attorney's conduct, in effect, obliterates the existence of the attorney-client relationship, and for this reason his negligence should not be imputed to the client.' [Citations.]" (<i>Id.</i> at p. 898.) The exception is narrowly applied. (<i>Id.</i> at p. 900.) "Despite the general rule which imputes the attorney's neglect to the client, there are exceptional cases in which the client, relatively free from